



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DEC 14 2000

DOT-E 12597

EXPIRATION DATE: March 31, 2001

1. GRANTEE: Firestone Tire & Rubber Company
Savannah, GA
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of anhydrous ammonia in certain DOT Specification 51 portable tanks. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 178.245-4(e), in that DOT Specification 51 portable tanks which meet the definition of a container in § 450.3(a)(2), without having been prototype-tested, are not authorized except as specified herein.
5. BASIS: This emergency exemption is based on the application of Firestone Tire & Rubber Company dated December 6, 2000, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.

DEC 14 2000

continuation of DOT-E 12597

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammonia, anhydrous	2.2	UN1005	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are seven (7) DOT Specification 51 portable tanks which bear the following manufacturer's identification numbers and which meet the definition of a container in § 450.3(a)(2) without having been prototype tested as required by 49 CFR Parts 450 through 453: 88-508/NB27, 88-509/NB28, 88-510/NB29, 88-511/NB30, 88-512/NB31, 88-513/NB32, and 88-515/NB34.

b. OPERATIONAL CONTROLS -

(1) The transportation is limited to the above identified portable tanks owned by Firestone Tire & Rubber Company and transported on vessels owned and operated by Firestone Tire & Rubber Company.

(2) The DOT Specification 51 portable tanks authorized by this exemption are limited to one round-trip between Firestone Tire & Rubber Company, Savannah, GA, and Firestone's Rubber Plantation, in Liberia, West Africa.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. MARKING: Each portable tank must be marked "DOT-E 12597" in accordance with the provisions of §§ 172.302(b) and 172.302(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

DEC 14 2000

continuation of DOT-E 12597

Page 3

10. MODAL REQUIREMENTS:

a. A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.

b. Prior to shipment of each filled tank, the tank must be inspected by an authorized representative of Radian, Inc., a United States delegated Approval Authority in accordance with the International Convention for Safe Containers (CSC), who must verify that the tank is suitable for transportation.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

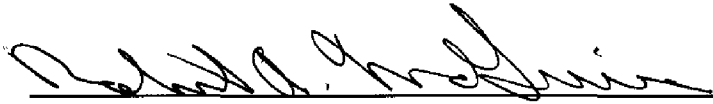
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

DEC 14 2000
(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
U.S. Department of Transportation, 400 Seventh Street, SW,
Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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PO: MP/AM